

Los Angeles Regional Water Quality Control Board

June 25, 2013

Mr. James Acosta
Saticoy Sanitary District
1001 Partridge Drive, Suite 150
Ventura, California 93003

WASTE DISCHARGE REQUIREMENTS, MONITORING AND REPORTING PROGRAM, AND CEASE AND DESIST ORDER FOR SATICOY SANITARY DISTRICT (JOSE FLORES WASTEWATER TREATMENT PLANT), 1419.5 LIRIO STREET, SATICOY, CALIFORNIA (FILE NO. 54-008, ORDER NOS. R4-2013-0092 and R4-2013-0098, CI NO. 1761, GLOBAL ID WDR100000104)

Dear Mr. Acosta:

Our letter of April 5, 2013, transmitted tentative Waste Discharge Requirements (WDRs) and a tentative Cease and Desist Order (CDO) for Saticoy Sanitary District.

Pursuant to Division 7 of the California Water Code, the California Regional Water Quality Control Board, Los Angeles Region (Regional Board) at a public meeting held on June 6, 2013, reviewed the tentative WDRs and the tentative CDO, considered all factors in the case, and adopted WDRs Order No. R4-2013-0092 and CDO No. R4-2013-0098 (copies enclosed) relative to this discharge. The adopted WDRs and CDO will be posted on the Regional Board's website at:

http://www.waterboards.ca.gov/losangeles/board_decisions/adopted_orders/

The Discharger shall comply with the Electronic Submittal of Information (ESI) requirements by submitting all reports required under the WDRs and CDO, including groundwater monitoring data, discharge location data, and pdf monitoring reports to the State Water Resources Control Board GeoTracker database under Global ID WDR100000104. ESI training video is available at:

<https://waterboards.webex.com/waterboards/ldr.php?AT=pb&SP=MC&rID=44145287&rKey=7dad4352c990334b>

If you have any questions, please contact the Project Manager, Dr. Ann Chang at (213) 620-6122 (achang@waterboards.ca.gov), or the Chief of Groundwater Permitting Unit, Dr. Eric Wu at (213) 576-6683 (ewu@waterboards.ca.gov).

Sincerely,

A handwritten signature in blue ink, appearing to read "Eric Wu", with a horizontal line underneath it.

Eric Wu, Ph.D., P.E.
Chief of Groundwater Permitting Unit

Enclosures: a. Waste Discharge Requirements Order No. R4-2013-0092
 b. Standard Provisions, Applicable to Waste Discharge Requirements
 c. Monitoring and Reporting Program CI No. 1761
 d. Cease and Desist Order No. R4-2013-0098

cc: Mr. Kurt T. Souza, California Department of Public Health
 Mr. William C. Stratton, Ventura County Environmental Health Division

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LOS ANGELES REGION**

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**ORDER NO. R4-2013-0092
FILE NO. 54-008
CI NO. 1761**

**WASTE DISCHARGE REQUIREMENTS
ISSUED TO
SATICOY SANITARY DISTRICT
(JOSE FLORES WASTEWATER TREATMENT PLANT)**

The California Regional Water Quality Control Board, Los Angeles Region (Regional Board) finds:

BACKGROUND

1. The Saticoy Sanitary District (SSD, hereinafter Discharger) owns the Jose Flores Wastewater Treatment Plant (Jose Flores WWTP) which is located at 1419.5 Lirio Street, Saticoy, California (Figure 1). SSD contracts with the Ventura Regional Sanitation District (VRSD) for management, operation, and maintenance of the Jose Flores WWTP.
2. Saticoy is a small community located within an unincorporated area of Ventura County, California. In the late 1950s, SSD installed a wastewater collection system and a centralized septic system to provide wastewater treatment service for Saticoy community.
3. SSD collected sewage from the residents and directed it to the central treatment facility. The wastewater treatment process consisted of primary sedimentation through two parallel concrete septic tanks. SSD discharged treated municipal wastewater to evaporation/percolation ponds under Waste Discharge Requirements (WDRs) Order No. 94-032 adopted on April 4, 1994, and amended by WDR Order No. 97-105 adopted on July 21, 1997.
4. On August 12, 1999, the Regional Board adopted Resolution 99-13, which is an amendment to the Water Quality Control Plan, Los Angeles Region: Basin Plan for the Coastal Watershed of Los Angeles and Ventura Counties (Basin Plan) to include a prohibition on septic systems in the Oxnard Forebay (Oxnard Forebay Prohibition). Resolution 99-13 prohibits the installation of any new septic systems in the Oxnard Forebay and requires that all discharges from existing septic systems be ceased by January 1, 2008. The area covered by the Oxnard Forebay Prohibition includes Saticoy.
5. In May 2001, SSD obtained a Small Community Grant from the State Water Resources Control Board (State Board) for upgrading the wastewater treatment facility to comply with Resolution No. 99-13. In addition, SSD included construction and operation of a

June 6, 2013

sewage collection system for the annexed industrial area. On October 25, 2001, SSD was authorized to discharge treated municipal and commercial/industrial wastewater to evaporation/percolation ponds under WDR Order No. 01-155.

6. SSD established Pretreatment Ordinance No. SSD-5 which requires installation of a wastewater pretreatment device or system, including grease interceptors and gravity separating devices, to pretreat industrial wastewater flows prior to discharge to SSD sewerage system. SSD has inspected each of the commercial/industrial users within the service area and determined their discharges to be in compliance with SSD Pretreatment Ordinance No. SSD-5.
7. SSD was not capable of achieving immediate compliance with the requirements prescribed in WDR Order No. 01-155. Therefore, the Regional Board issued a Time Schedule Order (TSO) No. 01-156 upon WDRs issuance to allow SSD to come into compliance with the WDRs within a time frame specified in the TSO.
8. TSO No. 01-156 allowed SSD to comply with all effluent limitations and groundwater limitations contained in WDR Order No. 01-155 by September 1, 2006. In addition, TSO No. 01-156 ordered SSD to undertake a technical investigation to determine other corrective actions, including disinfection unit construction if the upgraded Jose Flores WWTP was not sufficient to bring the effluent into full compliance.
9. In 2002, SSD completed the conversion of its community septic tanks with the upgraded Jose Flores WWTP and a new collection system for all the existing industrial area septic tanks, thereby providing wastewater treatment service to the entire Saticoy community.
10. The effluent discharges continuously exceeded total dissolved solids (TDS) and sulfate interim limits prescribed in TSO No. 01-156. Therefore, SSD conducted a smoke test in 2003 which identified deficiencies in the system that could lead to inflow and infiltration into the collection system. Since 2005, SSD has been repairing segments of the collection system based on field inspections. In 2010, SSD initiated closed circuit television (CCTV) inspection of the majority of the collection system and identified a deterioration condition of the sewer lines within the northern portion of the residential areas.
11. In early 2012, SSD conducted a residential water softener survey on 162 households and found 3 residential brine wastewater discharged to sewers.
12. In June 2012, SSD conducted flow monitoring of the entire collection system to determine the base flow in specific line segments and investigated and eliminated illicit connections to the collection system. The results showed that the elevated levels of constituents of concern (TDS, sulfate, chloride, and boron) generally decrease as flow progresses away from the northerly portions of the collection system where pipeline failures have been observed allowing inflow and infiltration.

13. In November 2012, SSD concluded that the shallow perched groundwater in the northern portion of the SSD collection system is of extremely poor (brackish) quality and is seasonally shallow enough to infiltrate and affect the quality of the treatment plant effluent. In addition to percolation of rainwater and lawn irrigation return flows, the present groundwater quality is a remnant of historical land uses that have contributed agricultural return flows and septic system discharges through leach fields prior to installation of the community sewer system.
14. Based on groundwater data collected from a remediation site located in the Saticoy service area (within 1,000 feet to the north of the evaporation/percolation ponds), sulfate concentrations in groundwater increased from 510 milligrams per liter (mg/L) in 2004 to 1,220 mg/L in 2011.
15. California Water Code (CWC) section 13263(e) provides that all waste discharge requirements shall be reviewed periodically and, upon such review, may be revised by the Regional Board. Following a review of requirements in WDR Order No. 01-155 and inspections of the subject site on February 8, 2012, these requirements have been revised to include additional findings, effluent and groundwater limitations, updated standard provisions, and revised monitoring and reporting program.

FACILITY AND TREATMENT PROCESS DESCRIPTION

16. The Jose Flores WWTP and evaporation/percolation ponds are located adjacent to the north bank of the Santa Clara River with approximate latitude of 34° 16' 32.24" and longitude of 119° 08' 48.44" (Figure 2). An unlined flood control channel, referred to as Brown Barranca, borders the site to the east and conveys storm runoff from the Saticoy area to the Santa Clara River.
17. Potable water supply to the Saticoy community is provided by the City of Ventura (City). The City has three local water sources, each producing approximately one third of the entire water supply. Water is pumped from the Ventura River at Foster Park, purchased from Lake Casitas (which is operated and treated by the Casitas Municipal Water District), and pumped from groundwater wells located in the City's east side near Victoria Avenue and in Saticoy. On June, 2012, SSD conducted potable water testing from potable water supply at Jose Flores WWTP. The potable water contained TDS at a concentration of 820 mg/L and sulfate at a concentration of 500 mg/L and meets California drinking water standards.
18. Presently, SSD provides sewage collection and treatment to approximately 271 connections, including 177 residential and 94 commercial/industrial connections, with an estimated population of 1,130 persons in the Saticoy community.
19. The Jose Flores WWTP has a design capacity of 250,000 gallons per day (gpd). Present average dry weather flow is 100,000 gpd and the peak flow during rainy season is up to 200,000 gpd.

20. The Jose Flores WWTP is a secondary wastewater treatment plant. The treatment process starts at the headworks where wastewater is passed through an auger monster to remove trash. Wastewater is then pumped to the sequencing batch reactors for biological treatment. The treated effluent is discharged to evaporation/percolation ponds located along the north bank of the Santa Clara River.
21. Sludge from the sequencing batch reactor is pumped into an aerobic digester for primary stabilization and then is transferred into the Geotube® for separation of water from the biosolids. The Geotube® is a porous bag that allows for storage, containment, and dewatering of biosolids. When the bags are full and sufficiently dry they are opened and the dried biosolids are hauled to the landfill for disposal.
22. The dimensions of the five evaporation/percolation ponds as follows:

Pond #	Top Length (feet)	Top Width (feet)	Bottom Length (feet)	Bottom Width (feet)	Depth (feet)	Top Area (square feet)	Bottom Area (square feet)
1	200	100	180	80	8	20,000	14,400
2	200	155	180	135	8	31,000	24,300
3	145	140	125	120	8	20,300	15,000
4	140	80	120	60	8	11,200	7,200
5	135	160	115	140	8	21,600	16,100

Currently, treated effluent is discharged to two (ponds #1 and #2) of the five evaporation/percolation ponds. The two percolation/evaporation ponds operate in three phases: fill, rest, and standby.

23. Two monitoring wells are located near the northeast and southwest corners of the five percolation/evaporation ponds and are used to evaluate any impact from the effluent discharges to groundwater. Historical groundwater monitoring data indicated that depths to groundwater at the subject site ranged from approximately 23 to 78 feet below ground surface (bgs) during past ten years. Based on the review of project files, Regional Board staff determine that the existing groundwater monitoring network is inadequate for evaluating any impact from the effluent discharges to groundwater.

COMPLIANCE HISTORY

24. After Jose Flores WWTP was upgraded in 2002, SSD continued to have intermittent effluent exceedances. Monitoring reports submitted to the Regional Board from September 2006 through December 2012 showed 150 effluent limit violations of TDS, sulfate, chloride, boron, and total nitrogen, with primarily TDS and sulfate exceedances up to 4,300 mg/L and 2,300 mg/L, respectively. In addition, monitoring reports indicated 132 receiving water violations for TDS, sulfate, and total coliform, with TDS and sulfate exceedances up to 2,600 mg/L and 1,600 mg/L, respectively.

25. Although SSD has completed the major tasks specified in TSO No. 01-156, the effluent concentrations continuously exceeded the effluent limits. Therefore, the Regional Board issued two Notice of Violations (NOV) to SSD on February 27, 2012 and March 4, 2013. The NOVs required SSD to submit a report detailing corrective and preventive measures taken or proposed, to bring the discharge into compliance with effluent limitations and receiving water requirements prescribed in WDR Order No. 01-155.
26. On March 7, 2012, SSD provided information regarding the potential causes of effluent and receiving water exceedances and the steps that have been taken to achieve compliance, and assured its intention to implement additional measures towards resolving Jose Flores WWTP effluent and receiving water compliance issues in response to the February 27, 2012 NOV.
27. SSD submitted the *Summary Technical Report – Assessment of Conditions Impacting Effluent Discharge Quality at the Saticoy Wastewater Treatment Plant*, dated January 2013. Based on the findings of groundwater investigation, smoke testing, and CCTV inspections, SSD concluded that effluent quality is being deteriorated by the inflow and infiltration within the older northerly portions of the SSD residential sewer collection system. SSD proposed to improve the integrity of the collection system in order to reduce inflow and infiltration and allow further evaluation of lateral connections and potential other tie-ins to the sewer system.
28. On March 13, 2013, the Regional Board issued an NOV to the VRSD for violating State Water Resources Control Board Order No. 2006-0003-DWQ Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (SSS WDR) under which the VRSD was enrolled on August 24, 2006. The following violations of the SSS WDR were noted:
 - The VRSD has conducted no internal audits to evaluate the effectiveness of the Sewer System Management Plan (SSMP) and its compliance with the SSMP requirements since SSD's SSMP was adopted by the SSD Board of Directors on July 20, 2010.
 - The VRSD has not properly managed, operated, and maintained all parts of the sanitary sewer system owned or operated by the VRSD.
 - The VRSD has not taken all feasible steps to eliminate sanitary sewer overflows.
 - The replacement plan does not include a time schedule for implementing the short- term and long-term plans plus a schedule for developing the funds needed for the capital improvement plan.

APPLICABLE PLANS, POLICIES AND REGULATIONS

29. The Regional Board adopted a revised Water Quality Control Plan for the Los Angeles Region: Basin Plan for the Coastal Watersheds of Los Angeles and Ventura Counties (Basin Plan) on June 13, 1994, which has been amended by various Regional Board resolutions. The Basin Plan (i) designates beneficial uses for surface and groundwater,

- (ii) establishes narrative and numerical water quality objectives that must be attained or maintained to protect the designated (existing and potential) beneficial uses and conform to the State's antidegradation policy, and (iii) includes implementation provisions, programs, and policies to protect all waters in the Region. In addition, the Basin Plan incorporates (by reference) all applicable State and Regional Board plans and policies and other pertinent water quality policies and regulations.
30. State Board Resolution No. 68-16 (hereafter Resolution No. 68-16 or the "Antidegradation" Policy) requires the Regional Board in regulating the discharge of waste to maintain high quality waters of the State until it is demonstrated that any change in quality will be consistent with maximum benefit to the people of the State, will not unreasonably affect beneficial uses, and will not result in water quality less than that described in the Regional Board's policies (e.g., quality that exceeds water quality objectives). Resolution No. 68-16 requires that any discharge that could degrade the waters of the State be regulated to assure use of best practicable treatment or control (BPTC) of the discharge to assure that pollution or nuisance will not occur, and the highest water quality consistent with maximum benefit to the people of the State will be maintained.
 31. This Order establishes limitations that will not unreasonably threaten present and anticipated beneficial uses or result in receiving water quality that exceeds water quality objectives set forth in the Basin Plan. This means that where the stringency of the limitations for the same waste constituent differs according to beneficial use, the most stringent applies as the governing limitation for that waste constituent. This Order contains tasks for assuring that BPTC and the highest water quality consistent with the maximum benefit to the people of the State will be achieved. Accordingly, the discharge is consistent with the antidegradation provisions of Resolution No. 68-16. Based on the results of the scheduled tasks, the Regional Board may reopen this Order to reconsider groundwater limitations and other requirements to comply with Resolution No. 68-16. This Order includes monitoring to assure compliance with the effluent limitations and other provisions of the Order.
 32. The Jose Flores WWTP and evaporation/percolation ponds are located in the Oxnard Plain Hydrologic area and overlies the Ventura Central Groundwater Basin. The Basin Plan has the following beneficial use designations:

Existing: municipal and domestic supply, industrial service supply,
 industrial process supply, and agricultural supply.
 33. The Discharger will be able to achieve compliance with all the effluent limitations listed in this Order and will not discharge any wastewater to surface water from the Jose Flores WWTP.
 34. The Regional Water Board will review this Order periodically and will revise requirements when necessary.

35. Section 13267(b) of the CWC states, in part, that "In conducting an investigation specified in subdivision (a), the regional board may require that any person who has discharged, discharges, or is suspected of having discharged or discharging or who proposes to discharge within its region, or any citizen or domiciliary, or political agency or entity of this state who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge waste outside of its region that could affect the quality of waters of the state within its region shall furnish under penalty of perjury, technical or monitoring program reports which the regional board requires. The burden, including costs of these reports shall bear a reasonable relationship to the need for the reports and the benefits to be obtained from the reports. In requiring those reports, the regional board shall provide the person with a written explanation with regard to the need for the reports, and shall identify the evidence that supports requiring that person to provide the reports."
36. The technical reports required by this Order No. R4-2013-0092 and the attached Monitoring and Reporting Program CI No. 1761 are necessary to assure compliance with these waste discharge requirements. The Discharger who owns and operates the Jose Flores WWTP that discharges the waste, is subject to this Order.

ELECTRONIC SUBMITTAL OF INFORMATION

37. Dischargers are required to submit all reports under the WDRs adopted by the Regional Board, including groundwater monitoring data in Electronic Data Format, discharge location data, and searchable Portable Document Format of reports and correspondence, to the State Water Resources Control Board GeoTracker database under Global ID WDR100000104.

CALIFORNIA ENVIRONMENTAL QUALITY ACT AND NOTIFICATION

38. This project involves an existing Jose Flores WWTP that involves no expansion of use as compared to the previous Order. As such, adoption of this Order is exempt from the provisions of the California Environmental Quality Act (Public Resources Code section 2100 et seq.) in accordance with California Code of Regulations (CCR), title 14, Chapter 3, section 15301.

The Regional Board has notified the Discharger and interested agencies and persons of the intent to issue WDRs for this discharge, and has provided them with an opportunity to submit written and oral comments. The Regional Board, in a public meeting, heard and considered all comments pertaining to the discharge and to the tentative requirements.

Any person aggrieved by this action of the Regional Board may petition the State Water Board to review the action in accordance with Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Board must receive the petition by 5:00 p.m., 30 days after the date of this Order, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Board by 5:00 p.m. on the next business day at P.O. Box 100, Sacramento, California, 95812, within 30 days of the date this Order is adopted. Copies of the law and regulations applicable to filing petitions may be found on the Internet at:

http://www.waterboards.ca.gov/public_notices/petitions/water_quality

or will be provided upon request.

IT IS HEREBY ORDERED that the Discharger, Saticoy Sanitary District, shall be responsible for and shall comply with the following requirements in all operations and activities at the Jose Flores WWTP:

A. EFFLUENT LIMITATIONS

1. The discharge flow shall not exceed a maximum flow of 250,000 gpd.
2. The pH in the effluent (wastewater discharged from the Jose Flores WWTP) shall at all times be from 6.5 to 8.5 pH units.
3. Effluent shall not contain constituents in excess of the following limits:

Constituent	Units ¹	Daily Maximum	Monthly Average
Oil and Grease	mg/L	15	10
BOD ₅	mg/L	45	30
Total Suspended Solids	mg/L	45	30
Total Dissolved Solids	mg/L	1,200	--
Sulfate	mg/L	600	--
Chloride	mg/L	150	--
Boron	mg/L	1	--
Nitrate as Nitrogen	mg/L	10	--
Nitrite as Nitrogen	mg/L	1	--
Total Nitrogen ²	mg/L	10	--
Methylene Blue Active Substances (MBAS)	mg/L	0.5	--

¹mg/L: milligrams per liter

²Total Nitrogen = nitrate-N + nitrite-N + ammonia-N + organic-N

4. Effluent shall not contain inorganic chemicals in concentrations exceeding the limits specified in the CCR, Title 22, Section 64431 or subsequent revisions (Attachment A-1).
5. The radioactivity of the effluent shall not exceed the limits specified in the CCR, Title 22, Sections 64442 and 64443 or subsequent revisions (Attachment A-2).
6. Effluent shall not contain organic chemicals in concentrations exceeding the limits specified in the CCR, Title 22, Section 64444 or subsequent revisions (Attachment A-3).

B. GROUNDWATER LIMITATIONS

1. "Receiving water" is defined as groundwater underlying the Jose Flores WWTP and evaporation/percolation ponds.
2. The discharge of treated wastewater from the Jose Flores WWTP shall not cause the receiving water to contain waste constituents greater than background water quality and the limits in B.3.
3. The discharged treated wastewater from the wastewater treatment plant shall not cause the receiving water (groundwater) to exceed the following limits:

Constituent	Units ¹	Maximum Limitation
Total Dissolved Solids (TDS)	mg/L	1,200
Sulfate	mg/L	600
Chloride	mg/L	150
Boron	mg/L	1
Nitrate as Nitrogen	mg/L	10
Nitrite as Nitrogen	mg/L	1
Total Nitrogen ²	mg/L	10
Total Coliform	MPN/100mL	<1.1
Fecal Coliform	MPN/100mL	<1.1

¹mg/L: milligrams per liter; MPN/100mL: most probable number (MPN) per 100 milliliters

²Total Nitrogen = nitrate-N + nitrite-N + ammonia-N + organic-N

4. By **August 6, 2013**, the Discharger shall submit a groundwater monitoring work plan, identifying the number and locations of the groundwater monitoring wells to determine site-specific groundwater flow direction and gradient for the purposes of adequately assessing any impacts to the quality of the receiving groundwater around the evaporation/percolation ponds. The proposed work plan shall be

prepared by or under the direction of a geologist registered in the State of California or civil engineer registered in the State of California and experienced in the field of hydrogeology, and is subject to the approval of the Executive Officer of this Regional Board.

5. By **January 15, 2014**, the Discharger shall submit the first groundwater monitoring results based on establishment of adequate groundwater monitoring network.

C. GENERAL REQUIREMENTS

1. Standby or emergency power facilities and/or sufficient capacity shall be provided for treated wastewater storage during rainfall or in the event of plant upsets or outages.
2. Adequate facilities shall be provided to protect the wastewater treatment plant, treatment system devices, and wastewater collection system from damage by storm flows and runoff or runoff generated by a 100-year storm.
3. The Discharger's wastewater treatment system shall be operated and maintained to prevent inundation or washout due to floods with a 100-year return frequency.
4. The Discharger shall operate all systems and equipment to maximize treatment of wastewater and optimize the quality of the discharge.
5. The treatment system, including the collection system that is a part of the treatment system and the disposal system, shall be maintained in such a manner that prevents wastewater from surfacing or overflowing at any location.
6. A minimum of two feet of freeboard shall be maintained in the percolation/evaporation ponds at all time to ensure that direct rainfall will not cause overtopping.
7. Sludge and other solids removed from wastewater treatment system shall be disposed of in a manner that is consistent with Title 27, Division 2, Subdivision 1 of the CCR and approved by the Executive Officer.
8. Sludge and other solids shall be removed from wastewater treatment equipment, sumps, ponds, etc. as needed to ensure optimal plant operation and adequate hydraulic capacity. Drying operations shall take place such that leachate does not impact the quality of groundwater or surface water.
9. Storage and disposal of domestic wastewater shall comply with existing Federal, State, and local laws and regulations, including permitting requirements and technical standards.

D. PROHIBITIONS

1. The direct or indirect of any waste and/or wastewater to surface waters or surface water drainage courses is prohibited.
2. There shall be no waste and/or sanitary sewer overflows or discharge of partially-treated wastes from the Jose Flores WWTP's treatment, storage or disposal facilities to adjacent drainage ways, adjacent properties or waters of the State (including storm drains) at any time.
3. Bypass, discharger or overflow of untreated wastes, except as allowed by Section D.15 of this Order, is prohibited.
4. Discharge of waste classified as 'hazardous', as defined in Section 2521(a) of Title 23, CCR, Section 2510 et seq., is prohibited. Discharge of waste classified as 'designated,' as defined in CWC section 13173, in a manner that causes violation of groundwater limitations, is prohibited.
5. Wastes shall not be disposed of in geologically unstable areas or so as to cause earth movement.
6. Wastes discharged shall not impart tastes, odors, color, foaming or other objectionable characteristics to the receiving water.
7. There shall be no onsite permanent disposal of sludge. Any offsite disposal of sewage or sludge shall be made only to a legal point of disposal. For purposes of this Order, a legal disposal site is one for which requirements have been established by a California Regional Water Quality Control Board or comparable regulatory entity, and which is in full compliance therewith. Any sewage or sludge handling shall be in such a manner as to prevent its reaching surface waters or watercourses.
8. Sewage odors shall not be detectable at the property boundary.
9. Wastes discharged from the wastewater treatment plant shall at no time contain any substances in concentrations toxic to human, animal, plant, or aquatic life.
10. The discharge of waste shall not create a condition of pollution, contamination, or nuisance. No new connections may be made without notification to the Regional Board.
11. Nutrient materials in the waste discharged to the evaporation/percolation ponds shall not cause objectionable aquatic growth or degrade indigenous biota.
12. The discharge of any wastewater to surface waters or surface water drainage courses is prohibited without a NPDES permit.

13. The evaporation/percolation ponds shall not contain floating materials, including solids, foams or scum in concentrations that cause nuisance, adversely affect beneficial uses, or serve as a substrate for undesirable bacterial or algae growth or insect vectors.
14. The percolation/evaporation ponds, drying beds and the berms surrounding the ponds shall not contain plants, shrubs, or bushes that may damage the berms and the ponds.
15. Bypass (the intentional diversion of waste stream from any portion of a treatment facility) is prohibited unless:
 - a. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage. (Severe property damage means substantial physical damage to property, damage to the treatment facilities that cause them to become inoperable, or substantial and permanent loss in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production);
 - b. There were no feasible alternatives to bypass, such as the use of auxiliary treatment facilities, retention of untreated waste, or maintenance during normal periods of equipment down time. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that could occur during normal periods of equipment downtime or preventive maintenance; and
 - c. The Discharger submitted a notice at least 48 hours in advance of the need for a bypass to the Regional Board.
16. Any discharge of wastewater from the treatment system (including the wastewater collection system) at any point other than specifically described in this Order is prohibited and constitutes a violation of this Order.

E. PROVISIONS

1. A copy of this Order shall be maintained at the wastewater treatment plant so as to be available at all times to operating personnel.
2. The Discharger shall file with the Regional Board technical reports on self-monitoring work performed according to the detailed specifications contained in Monitoring and Reporting Program CI No. 1761 attached hereto and incorporated herein by reference, as directed by the Executive Officer. The results of any monitoring done more frequently than required at the location and/or times specified in the Monitoring and Reporting Program shall be reported to the

Regional Board. The Discharger shall comply with all of the provisions and requirements of the Monitoring and Reporting Program.

3. The Discharger shall comply with all applicable requirements of Chapter 4.5 Onsite Sewage Treatment Systems of division 7 of the CWC.
4. Monitoring and Reporting Program CI No. 1761 contains requirements, among others, a groundwater monitoring program for the Jose Flores WWTP so that the groundwater downgradient and upgradient from the evaporation/percolation ponds and discharge/disposal area can be measured, sampled, and analyzed to determine if discharges from the disposal system are impacting water quality.
5. The Discharger shall monitor the background of the receiving groundwater quality as it relates to its effluent discharges. Should monitoring data indicate possible groundwater contamination is attributable to the Jose Flores WWTP effluent disposal practices, the Discharger must develop a source control plan including a detailed source identification and pollution minimization plan, together with the time schedule of implementation, and must be submitted within 120 days of recording the exceedence.
6. Wastewater treatment and discharge at the wastewater treatment Jose Flores WWTP shall not cause pollution or nuisance as defined in CWC section 13050.
7. In accordance with CWC section 13260(c), the Discharger shall file a report of any material change or proposed change in the character, location, or volume of the discharge. The report shall be submitted to and approved by the Regional Board 60 days prior to any changes.
8. The Discharger shall operate and maintain its wastewater collection, treatment and disposal facilities in a manner to ensure that all facilities are adequately staffed, supervised, financed, operated, maintained, repaired, and upgraded as necessary, to provide adequate and reliable transport, treatment, and disposal of all wastewater from both existing and planned future wastewater sources under the Discharger's responsibilities. Anyone employed in the operation of the wastewater treatment plant must be certified pursuant to CWC sections 13625-13633.
9. By **September 6, 2013**, the Discharger shall submit to the Regional Board an Operations and Maintenance Manual (O & M Manual) for the entire Jose Flores WWTP and disposal facilities for the Jose Flores WWTP. The Discharger shall maintain the O & M Manual in useable condition, and available for reference and use by all applicable personnel. The Discharger shall regularly review, and revise or update as necessary, the O & M Manual(s) in order for the document(s) to remain useful and relevant to current equipment and operation practices. Reviews shall be conducted annually, and revisions or updates shall be completed as necessary and submitted to the Regional Board.

10. The Discharger shall take all reasonable steps to minimize or prevent any discharge that has a reasonable likelihood of adversely affecting human health or the environment.
11. For any violation of requirements in this Order, the Discharger shall notify the Regional Board within 24 hours of knowledge of the violation either by telephone or electronic mail. The notification shall be followed by a written report within one week. The Discharger in the next monitoring report shall also confirm this information. In addition, the report shall include the reasons for the violations or adverse conditions, the steps being taken to correct the problem (including dates thereof), and the steps being taken to prevent a recurrence.
12. This Order does not relieve the Discharger from the responsibility to obtain other necessary local, state, and federal permits to construct facilities necessary for compliance with this Order; nor does this Order prevent imposition of additional standards, requirements, or conditions by any other regulatory agency.
13. After notice and opportunity for a hearing, this Order may be terminated or modified for causes including, but not limited, to:
 - a. Violation of any term or condition contained in this Order;
 - b. Obtaining this Order by misrepresentation, or failure to disclose all relevant facts; or
 - c. A change in any condition, or the discovery of any information, that requires either a temporary or permanent reduction or elimination of the authorized discharge.
14. The Discharger shall furnish, within a reasonable time, any information the Regional Board may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this Order. The Discharger shall also furnish to the Regional Board, upon request, copies of records required to be kept by this Order.
15. This Order includes the attached *Standard Provisions Applicable to Waste Discharge Requirements* which are incorporated herein by reference. If there is any conflict between provisions stated herein and the *Standard Provisions Applicable to Waste Discharge Requirements*, the provisions stated herein will prevail.
16. The Discharger shall allow the Regional Board, or an authorized representative upon the presentation of credentials and other documents as may be required by law, to:

- a. Enter upon the Discharger premises where a regulated Jose Flores WWTP or activity is located or conducted, or where records must be kept under the conditions of this Order;
 - b. Have access to and copy, at reasonable times, any records that must be kept under the conditions of this Order;
 - c. Inspect at reasonable times any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this Order; and
 - d. Sample or monitor at reasonable times, for the purposes of assuring compliance with this Order, or as otherwise authorized by the CWC, any substances or parameters at any locations.
17. The WDRs contained in this Order will remain in effect and will be reviewed after five (5) years. Should the Discharger wish to continue discharging to groundwater for a period of time in excess of 5 years, the Discharger must file an updated Report of Waste Discharge with the Regional Board no later than 120 days in advance of the fifth-year anniversary date of the Order for consideration of issuance of new or revised waste discharge requirements. Any discharge of waste ten years after the date of adoption of this Order, without filing an updated Report of Waste Discharge with the Regional Board, is a violation of CWC section 13264. The Regional Board is authorized to take appropriate enforcement action for any noncompliance with this provision including assessment of monetary civil liability.
18. All discharges of waste into the waters of the State are privileges, not rights. In accordance with CWC section 13263(g), these requirements shall not create a vested right to continue to discharge and are subject to rescission or modification.

F. REOPENER

1. The Regional Board may modify, or revoke and reissue this Order if present or future investigations demonstrate that the discharge(s) governed by this Order will cause, have the potential to cause, or will contribute to adverse impacts on water quality and/or beneficial uses of the receiving waters.
2. This Order may be reopened to include additional or modified requirements to address Discharger's expansion or mitigation plans, TMDL or Basin Plan mandates, or groundwater limitation compliance with Resolution No. 68-16.

G. TERMINATION

Except for enforcement purposes, WDR Order No. 01-155, adopted by the Regional Board on October 25, 2001, is hereby terminated.

I, Samuel Unger, Executive Officer, do hereby certify that the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Los Angeles Region, on June 6, 2013.



Samuel Unger, P. E. *for*
Executive Officer *Chief Deputy EO*

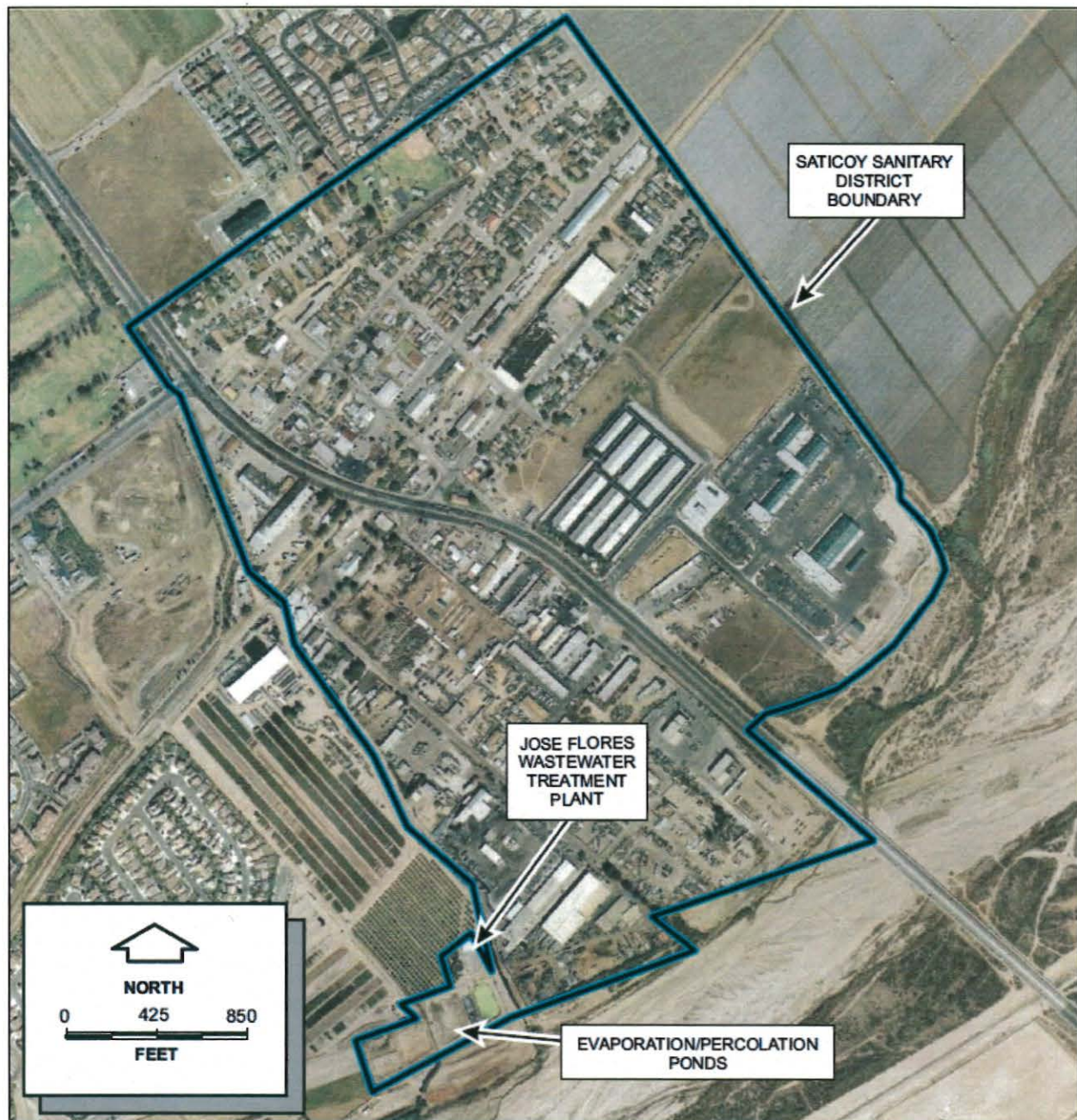


Figure 1. Project Location Map

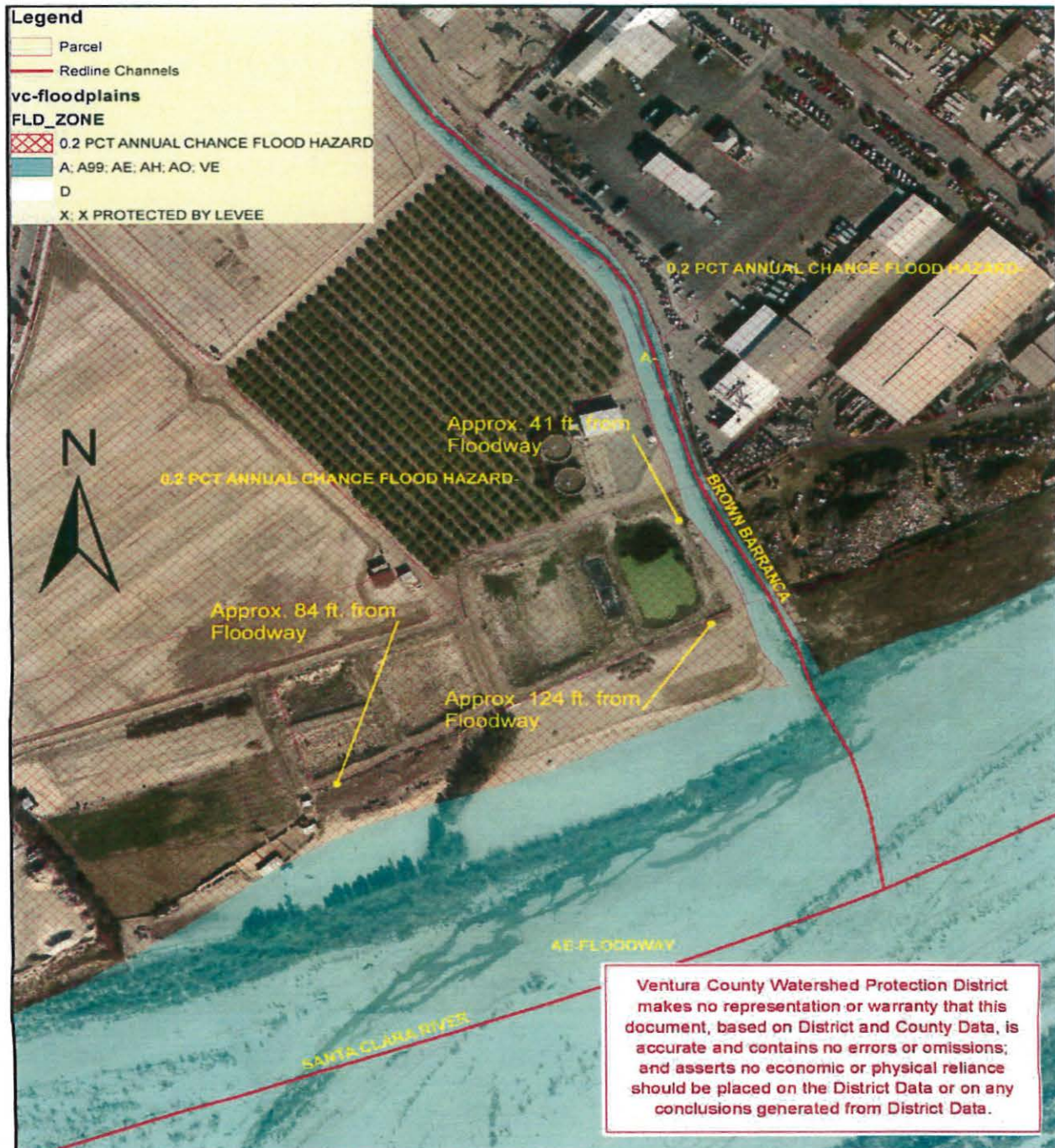


Figure 2. Facility Area Map

Attachment A-1

**Maximum Contaminant Levels
Inorganic Chemicals
specified in Table 64431-A of Section 64431 of Title 22 of the CCR**

<i>Chemical</i>	<i>Maximum Contaminant Level, mg/L</i>
Aluminum	1.
Antimony	0.006
Arsenic	0.010
Asbestos	7 MFL*
Barium	1.
Beryllium	0.004
Cadmium	0.005
Chromium	0.05
Cyanide	0.15
Fluoride	2.0
Mercury	0.002
Nickel	0.1
Nitrate (as NO ₃)	45.
Nitrate+Nitrite (sum as nitrogen)	10.
Nitrite (as nitrogen)	1.
Perchlorate	0.006
Selenium	0.05
Thallium	0.002

* MFL=million fibers per liter; MCL for fibers exceeding 10 um in length.

Attachment A-2

**Maximum Contaminant Levels
Radionuclides
specified in Table 64442 of Section 64442 and Table 64443 of Section 64443
of Title 22 of the CCR**

<i>Radionuclide</i>	<i>Maximum Contaminant Level</i>
Radium-226	5 pCi/L (combined radium-226 & -228)
Radium-228	
Gross Alpha particle activity (excluding radon and uranium)	15 pCi/L
Uranium	20 pCi/L
Beta/photon emitters	4 millirem/year annual dose equivalent to the total body or any internal organ
Strontium-90	8 pCi/L (= 4 millirem/yr dose to bone marrow)
Tritium	20,000 pCi/L (= 4 millirem/yr dose to total body)

Attachment A-3

**Maximum Contaminant Levels
Organic Chemicals
specified in Table 64444-A of Section 64444 of Title 22 of the CCR**

<i>Chemical</i>	<i>Maximum Contaminant Level, mg/L</i>
(a)Volatile Organic Chemicals (VOCs)	
Benzene	0.001
Carbon Tetrachloride (CTC)	0.0005
1,2-Dichlorobenzene	0.6
1,4-Dichlorobenzene	0.005
1,1-Dichloroethane	0.005
1,2-Dichloroethane (1,2-DCA)	0.0005
1,1-Dichloroethene (1,1-DCE)	0.006
Cis-1,2-Dichloroethylene	0.006
Trans-1,2-Dichloroethylene	0.01
Dichloromethane	0.005
1,2-Dichloropropane	0.005
1,3-Dichloropropene	0.0005
Ethylbenzene	0.7
Methyl-tert-butyl-ether	0.013
Monochlorobenzene	0.07
Styrene	0.1
1,1,2,2-Tetrachloroethane	0.001
Tetrachloroethylene (PCE)	0.005
Toluene	0.15
1,2,4-Trichlorobenzene	0.07
1,1,1-Trichloroethane	0.2
1,1,2-Trichloroethane -	0.005
Trichloroethylene (TOE)	0.005
Trichlorofluoromethane	0.15
1,1,2-Trichloro-1,2,2-Trifluoroethane	1.2
Vinyl Chloride	0.0005
Xylenes (m,p)	1.75

Attachment A-3 (continued)

**Maximum Contaminant Levels
Organic Chemicals
specified in Table 64444-A of Section 64444 of Title 22 of the CCR**

<i>Chemical</i>	<i>Maximum Contaminant Level, mg/L</i>
(b) Non-Volatile Synthetic Organic Chemicals	
Alachlor	0.002
Atrazine	0.003
Bentazon	0.018
Benzo(a)pyrene	0.0002
Carbofuran	0.018
Chloradane	0.0001
2,4-D	0.07
Dalapon	0.2
1,2-Dibromo-3-chloropropane	0.0002
Di(2-ethylhexyl)adipate	0.4
Di(2-ethylhexyl)phthalate	0.004
Dinoseb	0.007
Diquat	0.02
Endothall	0.1
Endrin	0.002
Ethylene Dibromide (EDB)	0.00005
Glyphosate	0.7
Heptachlor	0.0000.1
Heptachlor Epoxie	0.00001
Hexachlorobenzene	0.001
Hexachlorocyclopentadiene	0.05
Lindane	0.0002
Methoxychlor	0.04
Molinate	0.02
Oxamyl	0.2
Pentachlorophenol	0.001
Picloram	0.5
Polychlorinated Biphenyls	0.0005
Simazine	0.004
Thiobencarb	0.07
Toxaphene	0.003
2,3,7,8-TCDD (Dioxin)	3×10^{-8}
2,4,5-TP (Silvex)	0.05

*MCL is for either a single isomer or the sum of the isomers.

STANDARD PROVISIONS
APPLICABLE TO WASTE DISCHARGE REQUIREMENTS

1. DUTY TO COMPLY

The discharger must comply with all conditions of these waste discharge requirements. A responsible party has been designated in the Order for this project, and is legally bound to maintain the monitoring program and permit. Violations may result in enforcement actions, including Regional Board orders or court orders requiring corrective action or imposing civil monetary liability, or in modification or revocation of these waste discharge requirements by the Regional Board. [CWC Section 13261, 13263, 13265, 13268, 13300, 13301, 13304, 13340, 13350]

2. GENERAL PROHIBITION

Neither the treatment nor the discharge of waste shall create a pollution, contamination or nuisance, as defined by Section 13050 of the California Water Code (CWC). [H&SC Section 5411, CWC Section 13263]

3. AVAILABILITY

A copy of these waste discharge requirements shall be maintained at the discharge facility and be available at all times to operating personnel. [CWC Section 13263]

4. CHANGE IN OWNERSHIP

The discharger must notify the Executive Officer, in writing at least 30 days in advance of any proposed transfer of this Order's responsibility and coverage to a new discharger containing a specific date for the transfer of this Order's responsibility and coverage between the current discharger and the new discharger. This agreement shall include an acknowledgement that the existing discharger is liable for violations up to the transfer date and that the new discharger is liable from the transfer date on. [CWC Sections 13267 and 13263]

5. CHANGE IN DISCHARGE

In the event of a material change in the character, location, or volume of a discharge, the discharger shall file with this Regional Board a new Report of Waste Discharge. [CWC Section 13260(c)]. A material change includes, but is not limited to, the following:

- (a) Addition of a major industrial waste discharge to a discharge of essentially domestic sewage, or the addition of a new process or product by an industrial facility resulting in a change in the character of the Waste.

November 7, 1990
WDR

Standard Provisions Applicable to
Waste Discharge Requirements

- (b) Significant change in disposal method, e.g., change from a land disposal to a direct discharge to water, or change in the method of treatment which would significantly alter the characteristics of the waste.
- (c) Significant change in the disposal area, e.g., moving the discharge to another drainage area, to a different water body, or to a disposal area significantly removed from the original area potentially causing different water quality or nuisance problems.
- (d) Increase in flow beyond that specified in the waste discharge requirements.
- (e) Increase in the area or depth to be used for solid waste disposal beyond that specified in the waste discharge requirements. [CCR Title 23 Section 2210]

6. REVISION

These waste discharge requirements are subject to review and revision by the Regional Board. [CCR Section 13263]

7. TERMINATION

Where the discharger becomes aware that it failed to submit any relevant facts in a Report of Waste Discharge or submitted incorrect information in a Report of Waste Discharge or in any report to the Regional Board, it shall promptly submit such facts or information. [CWC Sections 13260 and 13267]

8. VESTED RIGHTS

This Order does not convey any property rights of any sort or any exclusive privileges. The requirements prescribed herein do not authorize the commission of any act causing injury to persons or property, do not protect the discharger from his liability under Federal, State or local laws, nor do they create a vested right for the discharger to continue the waste discharge. [CWC Section 13263(g)]

9. SEVERABILITY

Provisions of these waste discharge requirements are severable. If any provision of these requirements are found invalid, the remainder of the requirements shall not be affected. [CWC Section 921]

Standard Provisions Applicable to
Waste Discharge Requirements

10. OPERATION AND MAINTENANCE

The discharger shall, at all times, properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the discharger to achieve compliance with conditions of this Order. Proper operation and maintenance includes effective performance, adequate funding, adequate operator staffing and training, and adequate laboratory and process controls including appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems only when necessary to achieve compliance with the conditions of this Order. [CWC Section 13263(f)]

11. HAZARDOUS RELEASES

Except for a discharge which is in compliance with these waste discharge requirements, any person who, without regard to intent or negligence, causes or permits any hazardous substance or sewage to be discharged in or on any waters of the State, or discharged or deposited where it is, or probably will be, discharged in or on any waters of the State, shall, as soon as (a) that person has knowledge of the discharge, (b) notification is possible, and (c) notification can be provided without substantially impeding cleanup or other emergency measures, immediately notify the Office of Emergency Services of the discharge in accordance with the spill reporting provision of the State toxic disaster contingency plan adopted pursuant to Article 3.7 (commencing with Section 8574.7) of Chapter 7 of Division 1 of Title 2 of the Government Code, and immediately notify the State Board or the appropriate Regional Board of the discharge. This provision does not require reporting of any discharge of less than a reportable quantity as provided for under subdivisions (f) and (g) of Section 13271 of the Water Code unless the discharger is in violation of a prohibition in the applicable Water Quality Control plan. [CWC Section 1327(a)]

12. PETROLEUM RELEASES

Except for a discharge which is in compliance with these waste discharge requirements, any person who without regard to intent or negligence, causes or permits any oil or petroleum product to be discharged in or on any waters of the State, or discharged or deposited where it is, or probably will be, discharged in or on any waters of the State, shall, as soon as (a) such person has knowledge of the discharge, (b) notification is possible, and (c) notification can be provided without substantially impeding cleanup or other emergency measures, immediately notify the Office of Emergency Services of the discharge in accordance with the spill reporting provision of the State oil spill contingency plan adopted pursuant to Article 3.5 (commencing with Section 8574.1) of Chapter 7 of Division 1 of Title 2 of the Government Code. This provision does not require reporting of any discharge of less than 42 gallons unless the discharge is also required to be reported pursuant to Section 311 of the Clean Water Act or the discharge is in violation of a prohibition in the applicable Water Quality Control Plan. [CWC Section 13272]

Standard Provisions Applicable to
Waste Discharge Requirements

13. ENTRY AND INSPECTION

The discharger shall allow the Regional Board, or an authorized representative upon the presentation of credentials and other documents as may be required by law, to:

- (a) Enter upon the discharger's premises where a regulated facility or activity is located or conducted, or where records must be kept under the conditions of this Order;
- (b) Have access to and copy, at reasonable times, any records that must be kept under the conditions of this Order;
- (c) Inspect at reasonable times any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this Order; and
- (d) Sample or monitor at reasonable times, for the purposes of assuring compliance with this Order, or as otherwise authorized by the California Water Code, any substances or parameters at any location. [CWC Section 13267]

14. MONITORING PROGRAM AND DEVICES

The discharger shall furnish, under penalty of perjury, technical monitoring program reports; such reports shall be submitted in accordance with specifications prepared by the Executive Officer, which specifications are subject to periodic revisions as may be warranted. [CWC Section 13267]

All monitoring instruments and devices used by the discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary to ensure their continued accuracy. All flow measurement devices shall be calibrated at least once per year, or more frequently, to ensure continued accuracy of the devices. Annually, the discharger shall submit to the Executive Office a written statement, signed by a registered professional engineer, certifying that all flow measurement devices have been calibrated and will reliably achieve the accuracy required.

Unless otherwise permitted by the Regional Board Executive officer, all analyses shall be conducted at a laboratory certified for such analyses by the State Department of Health Services. The Regional Board Executive Officer may allow use of an uncertified laboratory under exceptional circumstances, such as when the closest laboratory to the monitoring location is outside the State boundaries and therefore not subject to certification. All analyses shall be required to be conducted in accordance with the latest edition of "Guidelines Establishing Test Procedures for Analysis of Pollutants" [40CFR Part 136] promulgated by the U.S. Environmental Protection Agency. [CCR Title 23, Section 2230]

Standard Provisions Applicable to
Waste Discharge Requirements

15. TREATMENT FAILURE

In an enforcement action, it shall not be a defense for the discharger that it would have been necessary to halt or to reduce the permitted activity in order to maintain compliance with this Order. Upon reduction, loss, or failure of the treatment facility, the discharger shall, to the extent necessary to maintain compliance with this Order, control production or all discharges, or both, until the facility is restored or an alternative method of treatment is provided. This provision applies, for example, when the primary source of power of the treatment facility fails, is reduced, or is lost. [CWC Section 13263(f)]

16. DISCHARGE TO NAVIGABLE WATERS

Any person discharging or proposing to discharge to navigable waters from a point source (except for discharge of dredged or fill material subject to Section 404 of the Clean Water Act and discharge subject to a general NPDES permit) must file an NPDES permit application with the Regional Board. [CCR Title 2 Section 22357]

17. ENDANGERMENT TO HEALTH AND ENVIRONMENT

The discharger shall report any noncompliance which may endanger health or the environment. Any such information shall be provided verbally to the Executive Officer within 24 hours from the time the discharger becomes aware of the circumstances. A written submission shall also be provided within five days of the time the discharger becomes aware of the circumstances. The written submission shall contain a description of the noncompliance and its cause; the period of noncompliance, including exact dates and times, and if the noncompliance has not been corrected; the anticipated time it is expected to continue and steps taken or planned to reduce, eliminate, and prevent recurrence of the noncompliance. The Executive officer, or an authorized representative, may waive the written report on a case-by-case basis if the oral report has been received within 24 hours. The following occurrence(s) must be reported to the Executive Office within 24 hours:

- (a) Any bypass from any portion of the treatment facility.
- (b) Any discharge of treated or untreated wastewater resulting from sewer line breaks, obstruction, surcharge or any other circumstances.
- (c) Any treatment plan upset which causes the effluent limitation of this Order to be exceeded. [CWC Sections 13263 and 13267]

18. MAINTENANCE OF RECORDS

The discharger shall retain records of all monitoring information including all calibration and maintenance records, all original strip chart recordings for continuous monitoring instrumentation, copies of all reports required by this Order, and record of all data used

Standard Provisions Applicable to
Waste Discharge Requirements

to complete the application for this Order. Records shall be maintained for a minimum of three years from the date of the sample, measurement, report, or application. This period may be extended during the course of any unresolved litigation regarding this discharge or when requested by the Regional Board Executive Officer.

Records of monitoring information shall include:

- (a) The date, exact place, and time of sampling or measurement;
 - (b) The individual(s) who performed the sampling or measurement;
 - (c) The date(s) analyses were performed;
 - (d) The individual(s) who performed the analyses;
 - (e) The analytical techniques or method used; and
 - (f) The results of such analyses.
19. (a) All application reports or information to be submitted to the Executive Office shall be signed and certified as follows:
- (1) For a corporation – by a principal executive officer or at least the level of vice president.
 - (2) For a partnership or sole proprietorship – by a general partner or the proprietor, respectively.
 - (3) For a municipality, state, federal, or other public agency – by either a principal executive officer or ranking elected official.
- (b) A duly authorized representative of a person designated in paragraph (a) of this provision may sign documents if:
- (1) The authorization is made in writing by a person described in paragraph (a) of this provision.
 - (2) The authorization specifies either an individual or position having responsibility for the overall operation of the regulated facility or activity; and
 - (3) The written authorization is submitted to the Executive Officer.

Any person signing a document under this Section shall make the following certification:

Standard Provisions Applicable to
Waste Discharge Requirements

"I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment. [CWC Sections 13263, 13267, and 13268]"

20. OPERATOR CERTIFICATION

Supervisors and operators of municipal wastewater treatment plants and privately owned facilities regulated by the PUC, used in the treatment or reclamation of sewage and industrial waste shall possess a certificate of appropriate grade in accordance with Title 23, California Code of Regulations Section 3680. State Boards may accept experience in lieu of qualification training. In lieu of a properly certified wastewater treatment plant operator, the State Board may approve use of a water treatment plan operator of appropriate grade certified by the State Department of Health Services where reclamation is involved.

Each plan shall be operated and maintained in accordance with the operation and maintenance manual prepared by the municipality through the Clean Water Grant Program [CWC Title 23, Section 2233(d)]

ADDITIONAL PROVISIONS APPLICABLE TO
PUBLICLY OWNED TREATMENT WORKS' ADEQUATE CAPACITY

21. Whenever a publicly owned wastewater treatment plant will reach capacity within four years the discharger shall notify the Regional Board. A copy of such notification shall be sent to appropriate local elected officials, local permitting agencies and the press. The discharger must demonstrate that adequate steps are being taken to address the capacity problem. The discharger shall submit a technical report to the Regional Board showing flow volumes will be prevented from exceeding capacity, or how capacity will be increased, within 120 days after providing notification to the Regional Board, or within 120 days after receipt of notification from the Regional Board, of a finding that the treatment plant will reach capacity within four years. The time for filing the required technical report may be extended by the Regional Board. An extension of 30 days may be granted by the Executive Officer, and longer extensions may be granted by the Regional Board itself. [CCR Title 23, Section 2232]

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LOS ANGELES REGION**

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**MONITORING AND REPORTING PROGRAM CI. NO. 1761
FOR
SATICOY SANITARY DISTRICT
(JOSE FLORES WASTEWATER TREATMENT PLANT)
(File No. 54-008)**

This Monitoring and Reporting Program (MRP) No. CI 1761 is issued pursuant to California Water Code section 13267, which authorizes the California Regional Water Quality Control Board, Los Angeles Region (Regional Board) to require a person who discharges waste that could affect the quality of the waters of the state to furnish technical or monitoring reports. The reports required herein are necessary to assure compliance with Waste Discharge Requirements (WDRs) Order No. R4-2013-0092 and to protect the waters of the state and their beneficial uses. The evidence that supports the need for the reports is set forth in the WDRs and the Regional Water Board record.

I. REPORTING REQUIREMENTS

- A. The Saticoy Sanitary District (SSD, hereinafter Discharger) shall implement this monitoring program on the effective date of this Order (WDR Order No. R4-2013-0092). The first monitoring report under this Program is due by **July 15, 2013**. Monitoring reports shall be received by the Regional Board by the dates in the following schedule:

<u>Reporting Period</u>	<u>Report Due</u>
January - March	April 15
April - June	July 15
July - September	October 15
October - December	January 15

- B. By March 1st of each year, beginning March 1, 2014, the Discharger shall submit an annual summary report to the Regional Board. The report shall contain both tabular and graphical summaries of the monitoring data obtained during the previous calendar year. In addition, the Discharger shall discuss the compliance record and the corrective actions taken or planned, which may be needed to bring the discharge into full compliance with the waste discharge requirements.

- C. Laboratory analyses – all chemical, bacteriological, and toxicity analyses shall be conducted at a laboratory certified for such analyses by the California Department of Public Health Environmental Laboratory Accreditation Program (ELAP). A copy of the laboratory certification shall be provided each time a new and/or renewal is obtained from ELAP.
- D. The monitoring report shall specify the United States Environmental Protection Agency (USEPA) analytical method used, the Method Detection Limit (MDL) and the Minimum Level (ML) for each pollutant. For the purpose of reporting compliance with numerical limitations, and receiving water limitations, analytical data shall be reported by one of the following methods, as appropriate:
1. An actual numerical value for sample results greater than or equal to the ML;
 2. "Detected, but Not Quantified (DNQ)" for sample results greater than or equal to the laboratory's MDL but less than the ML; or,
 3. "Not Detected (ND)" for sample results less than the laboratory's MDL with the MDL indicated for the analytical method used.

The minimum levels are those published by the State Water Resources Control Board in the *Policy for the Implementation of Toxics Standards for Inland Surface Waters, Enclosed Bays, and Estuaries of California*, February 24, 2005.

- E. The MLs employed for effluent analyses shall be lower than the permit limits established for a given parameter, unless the Discharger can demonstrate that a particular ML is not attainable and obtains approval for a higher ML from the Regional Board Executive Officer (Executive Officer). The Discharger shall submit a list of the analytical methods employed for each test and the associated laboratory quality assurance/quality control (QA/QC) procedures upon request by the Regional Board.
- F. Water/wastewater samples must be analyzed within allowable holding time limits as specified in 40 CFR Part 136.3. All Quality Assurance/Quality Control (QA/QC) samples must be run on the same dates when samples were actually analyzed. At least once a year, the Discharger shall maintain and update a list of the analytical methods employed for each test and the associated laboratory QA/QC procedures. The Discharger shall make available for inspection and/or submit the QA/QC documentation upon request by Regional Board staff.
- G. Each monitoring report must affirm in writing that "All analyses were conducted at a laboratory certified for such analyses by the California Department of Public

Health, and in accordance with current USEPA guideline procedures or as specified in this Monitoring Program." Proper chain of custody procedures must be followed and a copy of the completed chain of custody form shall be submitted with the report.

- H. For every item where the requirements are not met, the Discharger shall submit a statement of the cause(s), and actions undertaken or proposed which will bring the discharge into full compliance with waste discharge requirements at the earliest possible time, including a timetable for implementation of those actions.
- I. The Discharger shall maintain all sampling and analytical results: date; exact place, and time of sampling; dates analyses were performed; analyst's name; analytical techniques used; and results of all analyses. Such records shall be retained for a minimum of three years. This period of retention shall be extended during the course of any unresolved litigation regarding this discharge, or when requested by the Regional Board.
- J. In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized to demonstrate compliance with the requirements and, where applicable, shall include results of receiving water observations.

II. EFFLUENT MONITORING REQUIREMENTS

An effluent sampling station(s) shall be established for the Jose Flores Wastewater Treatment Plant (Jose Flores WWTP) at a location(s) where representative samples of treated wastewater can be obtained prior to discharge to the evaporation/percolation ponds. The effluent sampling station for the existing Jose Flores WWTP shall remain the same as has been previously used. Any proposed change of the sampling location for the Jose Flores WWTP shall be identified and approved by the Executive Officer prior to its use.

Table 1 summarizes the effluent monitoring program for the Jose Flores WWTP:

Table 1

Constituent	Units ¹	Type of Sample	Minimum Frequency of Analysis
Total Flow	gallon/day	recorder	continuous
pH	pH units	grab	monthly

Constituent	Units ¹	Type of Sample	Minimum Frequency of Analysis
Oil & Grease	mg/L	grab	monthly
BOD ₅	mg/L	grab	monthly
Total Suspended Solids	mg/L	grab	monthly
Total Dissolved Solids	mg/L	grab	monthly
Sulfate	mg/L	grab	monthly
Chloride	mg/L	grab	monthly
Boron	mg/L	grab	monthly
Nitrate as Nitrogen	mg/L	grab	monthly
Nitrite as Nitrogen	mg/L	grab	monthly
Ammonia as Nitrogen	mg/L	grab	monthly
Organic Nitrogen	mg/L	grab	monthly
Total Nitrogen	mg/L	grab	monthly
Methylene Blue Active Substances (MBAS)	mg/L	grab	monthly
Priority Pollutants ²	µg/L	grab	annually
CEC ³	µg/L	grab	annually

¹mg/L=milligrams per liter; µg/L=micrograms per liter

²See Appendix A to 40 CFR, Part 423 for list of priority pollutants

³See Attachment B for the list of California Emerging Chemicals

The monitoring reports shall contain the following information:

- Average and maximum daily waste flow for each month in gallons per day.
- Estimated population served during each month of the reporting period.

III. GROUNDWATER MONITORING PROGRAM

The current groundwater monitoring program for the Jose Flores WWTP disposal system consists of two monitoring wells (Saticoy #1 and Saticoy #2) installed around the Jose Flores WWTP and the percolation/evaporation ponds. However, Regional Board staff determine that the existing groundwater monitoring network is inadequate for assessing any impact to the quality of the receiving groundwater around the evaporation/percolation ponds.

By **August 6, 2013**, the Discharger shall submit a groundwater monitoring work plan for adequately evaluating any impacts from the effluent discharges to groundwater. The work plan shall include location and construction details of the proposed wells. Monitoring well

completion shall be in accordance with the standards in *Bulletins 74-81 and 74-90* of the California Department of Water Resources. The work plan shall be prepared by or under the direction of a geologist registered in the State of California or civil engineer registered in the State of California and experienced in the field of hydrogeology, and is subject to the approval of the Executive Officer of this Regional Board.

Table 2 summarizes the groundwater monitoring program for the Jose Flores WWTP:

Table 2

Constituent	Units ¹	Type of Sample	Minimum Frequency of Analysis
pH	pH units	grab	quarterly
Total Dissolved Solids	mg/L	grab	quarterly
Sulfate	mg/L	grab	quarterly
Chloride	mg/L	grab	quarterly
Boron	mg/L	grab	quarterly
Nitrate as Nitrogen	mg/L	grab	quarterly
Nitrite as Nitrogen	mg/L	grab	quarterly
Ammonia as Nitrogen	mg/L	grab	quarterly
Organic Nitrogen	mg/L	grab	quarterly
Total Nitrogen	mg/L	grab	quarterly
Methylene Blue Active Substances (MBAS)	mg/L	grab	quarterly
Total Coliform	MPN/100mL	grab	quarterly
Fecal Coliform	MPN/100mL	grab	quarterly
Priority Pollutants ²	µg/L	grab	annually
CEC ³	µg/L	grab	annually

¹mg/L=milligrams per liter; MPN/100mL=most probable number per 100 mL; µg/L=micrograms per liter

²See Appendix A to 40 CFR, Part 423 for list of priority pollutants

³See Attachment B for the list of California Emerging Chemicals

All groundwater monitoring reports must include, at minimum, the following:

- Well identification, date and time of sampling;
- Sampler identification, and laboratory identification; and
- Quarterly observation of groundwater levels, recorded to .01 feet mean sea level, flow direction.
- Vertical separation of the water table from the bottom of the evaporation/percolation ponds.

IV. WASTE HAULING REPORTING

In the event that waste oil and grease, sludge, or other wastes are hauled offsite, the name and address of the hauler shall be reported, along with types and quantities hauled during the reporting period and the location of final point of disposal. In the event that no wastes are hauled during the reporting period, a statement to that effect shall be submitted.

V. OPERATION AND MAINTENANCE REPORT

By **September 6, 2013**, the Discharger shall file with this Regional Board a technical report relative to the operation and maintenance program for the Jose Flores WWTP. The information to be contained in the report shall include, at a minimum, the following:

- A. The name and address of the person or company responsible for the operation and maintenance of the facility;
- B. Type of maintenance (preventive or corrective action performed);
- C. Frequency of maintenance, if preventive; and
- D. Periodic pumping out of the digester/sludge tank.

VI. MONITORING FREQUENCIES

Monitoring frequencies may be adjusted to a less frequent basis or parameters dropped by the Executive Officer if the Discharger makes a request and the Executive Officer determines that the request is adequately supported by statistical trends of monitoring data submitted.

VII. ELECTRONIC SUBMITTAL OF INFORMATION

Dischargers are directed to submit all reports required under the waste discharge requirements (WDR) adopted by the Regional Board, including groundwater monitoring data in Electronic Data Format, discharge location data, and searchable Portable Document Format of reports and correspondence, to the State Water Resources Control Board GeoTracker database under Global ID WDR100000104.

VIII. CERTIFICATION STATEMENT

Each report shall contain the following declaration:

"I certify under penalty of law that this document, including all attachments and supplemental information, was prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gathered and evaluated the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of a fine and imprisonment.

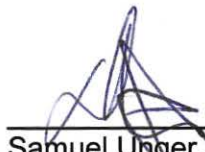
Executed on the ____ day of _____ at _____.

_____(Signature)

_____(Title)"

These records and reports are public documents and shall be made available for inspection during normal business hours at the office of the California Regional Water Quality Control Board, Los Angeles Region.

Ordered by:


C. Chief Deputy EO
Samuel Unger, P.E. *for*
Executive Officer

Date: June 6, 2013

Appendix A to 40 CFR, Part 423--126 Priority Pollutants

001 Acenaphthene	047 Bromoform (tribromomethane)	090 Dieldrin
002 Acrolein	048 Dichlorobromomethane	091 Chlordane (technical mixture and metabolites)
003 Acrylonitrile	051 Chlorodibromomethane	092 4,4-DDT
004 Benzene	052 Hexachlorobutadiene	093 4,4-DDE (p,p-DDX)
005 Benidine	053 Hexachloromyclopentadiene	094 4,4-DDD (p,p-TDE)
006 Carbon tetrachloride (tetrachloromethane)	054 Isophorone	095 Alpha-endosulfan
007 Chlorobenzene	055 Naphthalene	096 Beta-endosulfan
008 1,2,4-trichlorobenzene	056 Nitrobenzene	097 Endosulfan sulfate
009 Hexachlorobenzene	057 2-nitrophenol	098 Endrin
010 1,2-dichloroethane	058 4-nitrophenol	099 Endrin aldehyde
011 1,1,1-trichloroethane	059 2,4-dinitrophenol	100 Heptachlor
012 Hexachloroethane	060 4,6-dinitro-o-cresol	101 Heptachlor epoxide
013 1,1-dichloroethane	061 N-nitrosodimethylamine	(BHC-hexachlorocyclohexane)
014 1,1,2-trichloroethane	062 N-nitrosodiphenylamine	102 Alpha-BHC
015 1,1,2,2-tetrachloroethane	063 N-nitrosodi-n-propylamin	103 Beta-BHC
016 Chloroethane	064 Pentachlorophenol	104 Gamma-BHC (lindane)
018 Bis(2-chloroethyl) ether	065 Phenol	105 Delta-BHC (PCB-polychlorinated biphenyls)
019 2-chloroethyl vinyl ether (mixed)	066 Bis(2-ethylhexyl) phthalate	106 PCB-1242 (Arochlor 1242)
020 2-chloronaphthalene	067 Butyl benzyl phthalate	107 PCB-1254 (Arochlor 1254)
021 2,4, 6-trichlorophenol	068 Di-N-Butyl Phthalate	108 PCB-1221 (Arochlor 1221)
022 Parachlorometa cresol	069 Di-n-octyl phthalate	109 PCB-1232 (Arochlor 1232)
023 Chloroform (trichloromethane)	070 Diethyl Phthalate	110 PCB-1248 (Arochlor 1248)
024 2-chlorophenol	071 Dimethyl phthalate	111 PCB-1260 (Arochlor 1260)
025 1,2-dichlorobenzene	072 1,2-benzanthracene (benzo(a) anthracene)	112 PCB-1016 (Arochlor 1016)
026 1,3-dichlorobenzene	073 Benzo(a)pyrene (3,4-benzo-pyrene)	113 Toxaphene
027 1,4-dichlorobenzene	074 3,4-Benzofluoranthene (benzo(b) fluoranthene)	114 Antimony
028 3,3-dichlorobenzidine	075 11,12-benzofluoranthene (benzo(b) fluoranthene)	115 Arsenic
029 1,1-dichloroethylene	076 Chrysene	116 Asbestos
030 1,2-trans-dichloroethylene	077 Acenaphthylene	117 Beryllium
031 2,4-dichlorophenol	078 Anthracene	118 Cadmium
032 1,2-dichloropropane	079 1,12-benzoperylene (benzo(ghi) perylene)	119 Chromium
033 1,2-dichloropropylene (1,3-dichloropropene)	080 Fluorene	120 Copper
034 2,4-dimethylphenol	081 Phenanthrene	121 Cyanide, Total
035 2,4-dinitrotoluene	082 1,2,5,6-dibenzanthracene (dibenzo(.h) anthracene)	122 Lead
036 2,6-dinitrotoluene	083 Indeno (,1,2,3-cd) pyrene (2,3-o-pheynylene pyrene)	123 Mercury
037 1,2-diphenylhydrazine	084 Pyrene	124 Nickel
038 Ethylbenzene	085 Tetrachloroethylene	125 Selenium
039 Fluoranthene	086 Toluene	126 Silver
040 4-chlorophenyl phenyl ether	087 Trichloroethylene	127 Thallium
041 4-bromophenyl phenyl ether	088 Vinyl chloride (chloroethylene)	126 Silver
042 Bis(2-chloroisopropyl) ether	089 Aldrin	128 Zinc
043 Bis(2-chloroethoxy) methane		129 2,3,7,8-tetrachloro-dibenzo-p-dioxin (TCDD)
044 Methylene chloride (dichloromethane)		
045 Methyl chloride (dichloromethane)		
046 Methyl bromide (bromomethane)		

ATTACHMENT B

Parameter	Units
17 α -Ethinyl Estradiol	ng/L
17 β -Estradiol	ng/L
Estrone	ng/L
Bisphenol A	ng/L
Nonylphenol and nonylphenol polyethoxylates	ng/L
Octylphenol and octylphenol polyethoxylates	ng/L
Polybrominated diphenyl ethers	ng/L
Acetaminophen	ng/L
Amoxicillin	ng/L
Azithromycin	ng/L
Carbamazepine	ng/L
Caffeine	ng/L
Ciprofloxacin	ng/L
DEET	ng/L
Dilantin	ng/L
Gemfibrozil	ng/L
Ibuprofen	ng/L
Lipitor	ng/L
Primidone	ng/L
Sulfamethoxazole	ng/L
Trimethoprim	ng/L
Salicylic acid	ng/L
TCEP	ng/L
Triclosan	ng/L

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LOS ANGELES REGION**

320 West 4th Street, Suite 200, Los Angeles, California 90013
(213) 576-6660 • Fax (213) 576-6640
<http://www.waterboards.ca.gov/losangeles/>

**CEASE AND DESIST ORDER NO. R4-2013-0098
FILE NO. 54-008**

**REQUIRING SATICOY SANITARY DISTRICT
TO UNDERTAKE ACTIONS
TOWARD COMPLIANCE WITH WASTE DISCHARGE REQUIREMENTS CONTAINED IN
THE WASTE DISCHARGE REQUIREMENTS FOR DISCHARGES FROM THE JOSE
FLORES WASTEWATER TREATMENT PLANT**

The California Regional Water Quality Control Board, Los Angeles Region (Regional Board) finds:

BACKGROUND

1. The Saticoy Sanitary District (SSD, hereinafter Discharger) owns the Jose Flores Wastewater Treatment Plant (Jose Flores WWTP) which is located at 1419.5 Lirio Street, Saticoy, California. SSD contracts with the Ventura Regional Sanitation District (VRSD) for management, operation, and maintenance of the Jose Flores WWTP.
2. Saticoy is a small community located within an unincorporated area of Ventura County, California. In the late 1950s, SSD installed a wastewater collection system and a centralized septic system to provide wastewater treatment service for Saticoy community.
3. SSD collected sewage from the residents and directed it to the central treatment facility. The wastewater treatment process consisted of primary sedimentation through two parallel concrete septic tanks. SSD discharged treated municipal wastewater to evaporation/percolation ponds under Waste Discharge Requirements (WDRs) Order No. 94-032 adopted on April 4, 1994, and amended by WDR Order No. 97-105 adopted on July 21, 1997.
4. On August 12, 1999, the Regional Board adopted Resolution 99-13 which is an amendment to the Water Quality Control Plan, Los Angeles Region: Basin Plan for the Coastal Watershed of Los Angeles and Ventura Counties (Basin Plan) to include a prohibition on septic systems in the Oxnard Forebay (Oxnard Forebay Prohibition). Resolution 99-13 prohibits the installation of any new septic systems in the Oxnard Forebay and requires that all discharges from existing septic systems be ceased by January 1, 2008. The area covered by the Oxnard Forebay Prohibition includes Saticoy.
5. In May 2001, SSD obtained a Small Community Grant from the State Water Resources Control Board (State Board) for upgrading the wastewater treatment facility to comply with Resolution No. 99-13. In addition, SSD included construction and operation of a sewage collection system for the annexed industrial area. On October 25, 2001, SSD was authorized to discharge treated municipal and commercial/industrial wastewater to evaporation/percolation ponds under WDR Order No. 01-155.

June 6, 2013

6. SSD established Pretreatment Ordinance No. SSD-5 which requires installation of a wastewater pretreatment device or system, including grease interceptors and gravity separating devices, to pretreat industrial wastewater flows prior to discharge to SSD sewerage system. SSD has inspected each of the commercial/industrial users within the service area and determined their discharges to be in compliance with SSD Pretreatment Ordinance No. SSD-5.
7. SSD was not capable of achieving immediate compliance with the requirements prescribed in WDR Order No. 01-155. Therefore, the Regional Board issued a Time Schedule Order (TSO) No. 01-156 upon WDRs issuance to allow SSD to come into compliance with the WDRs within a time frame specified in the TSO.
8. TSO No. 01-156 allowed SSD to comply with all effluent limitations and groundwater limitations contained in WDR Order No. 01-155 by September 1, 2006. In addition, TSO No. 01-156 ordered SSD to undertake a technical investigation to determine other corrective actions, including disinfection unit construction if the upgraded Jose Flores WWTP was not sufficient to bring the effluent into full compliance.
9. In 2002, SSD completed the conversion of its community septic tanks with the upgraded Jose Flores WWTP and a new collection system for all the existing industrial area septic tanks, thereby providing wastewater treatment service to the entire Saticoy community.
10. The effluent discharges continuously exceeded total dissolved solids (TDS) and sulfate interim limits prescribed in TSO No. 01-156. Therefore, SSD conducted a smoke test in 2003 which identified deficiencies in the system that could lead to inflow and infiltration into the collection system. Since 2005, SSD has been repairing segments of the collection system based on field inspections. In 2010, SSD initiated closed circuit television (CCTV) inspection of the majority of the collection system and identified a deterioration condition of the sewer lines within the northern portion of the residential areas.
11. In early 2012, SSD conducted a residential water softener survey on 162 households and found 3 residential brine wastewater discharged to sewers.
12. In June 2012, SSD conducted flow monitoring of the entire collection system to determine the base flow in specific line segments and investigated and eliminated illicit connections to the collection system. The results showed that the elevated levels of constituents of concern (TDS, sulfate, chloride, and boron) generally decrease as flow progresses away from the northerly portions of the collection system where pipeline failures have been observed allowing inflow and infiltration.
13. In November 2012, SSD concluded that the shallow perched groundwater in the northern portion of the SSD collection system is of extremely poor (brackish) quality and is seasonally shallow enough to infiltrate and affect the quality of the treatment plant effluent. In addition to percolation of rainwater and lawn irrigation return flows, the present groundwater quality is a remnant of historical land uses that have contributed

agricultural return flows and septic system discharges through leach fields prior to installation of the community sewer system.

14. Based on groundwater data collected from a remediation site located in the Saticoy service area (within 1,000 feet to the north of the evaporation/percolation ponds), sulfate concentrations in groundwater increased from 510 milligrams per liter (mg/L) in 2004 to 1,220 mg/L in 2011.

COMPLIANCE HISTORY

15. After Jose Flores WWTP was upgraded in 2002, SSD continued to have intermittent effluent exceedances. Monitoring reports submitted to the Regional Board from September 2006 through December 2012 showed 150 effluent limit violations of TDS, sulfate, chloride, boron, and total nitrogen, with primary of TDS and sulfate exceedances up to 4,300 mg/L and 2,300 mg/L, respectively. In addition, monitoring reports indicated 132 receiving water violations for TDS, sulfate, and total coliform, with TDS and sulfate exceedances up to 2,600 mg/L and 1,600 mg/L, respectively.
16. Although SSD has completed the major tasks specified in TSO No. 01-156, the effluent concentrations continuously exceeded the effluent limits. Therefore, the Regional Board issued two Notice of Violations (NOV) to SSD on February 27, 2012 and March 4, 2013. The NOVs required SSD to submit a report detailing corrective and preventive measures taken or proposed, to bring the discharge into compliance with effluent limitations and receiving water requirements prescribed in WDR Order No. 01-155.
17. On March 7, 2012, SSD provided information regarding the potential causes of effluent and receiving water exceedances and the steps that have been taken to achieve compliance, and assured its intention to implement additional measures towards resolving Jose Flores WWTP effluent and receiving water compliance issues in response to the February 27, 2012 NOV.
18. SSD submitted the *Summary Technical Report – Assessment of Conditions Impacting Effluent Discharge Quality at the Saticoy Wastewater Treatment Plant*, dated January 2013. Based on the findings of groundwater investigation, smoke testing, and CCTV inspections, SSD concluded that effluent quality is being deteriorated by inflow and infiltration within the older northerly portions of the SSD residential sewer collection system. SSD proposed to improve the integrity of the collection system in order to reduce inflow and infiltration and allow further evaluation of lateral connections and potential other tie-ins to the sewer system.
19. On March 13, 2013, the Regional Board issued an NOV to the VRSD for violating State Water Resources Control Board Order No. 2006-0003-DWQ Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (SSS WDR) under which the VRSD was enrolled on August 24, 2006. The following violations of the SSS WDR were noted:

- VRSD has conducted no internal audits to evaluate the effectiveness of the Sewer System Management Plan (SSMP) and its compliance with the SSMP requirements since SSD's SSMP was adopted by the SSD Board of Directors on July 20, 2010.
 - The VRSD has not properly managed, operated, and maintained all parts of the sanitary sewer system owned or operated by the VRSD.
 - The VRSD has not taken all feasible steps to eliminate sanitary sewer overflows.
 - The replacement plan does not include a time schedule for implementing the short-term and long-term plans plus a schedule for developing the funds needed for the capital improvement plan.
20. WDR Order No. R4-2013-0092, adopted by the Regional Board on June 6, 2013 specifies requirements for the Jose Flores WWTP, which is owned by SSD and operated by VRSD. SSD cannot achieve immediate compliance with the requirements listed in the WDR Order No. R4-2013-0092. Therefore this Cease and Desist Order (CDO) sets forth a time schedule to allow the Discharger sufficient time to complete corrective and preventative actions to achieve compliance with the WDR Order.
21. California Water Code (CWC) section 13301 provides in pertinent part "When a regional board finds that a discharge of waste is taking place, or threatening to take place, in violation of requirements or discharge prohibitions prescribed by the regional board or the state board, the board may issue an order to cease and desist and direct that those persons not complying with the requirements or discharge prohibitions (a) comply forthwith, (b) comply in accordance with a time schedule set by the board, or (c) in the event of a threatened violation, take appropriate remedial or preventive action."
22. This project involves the issuance of WDRs for an existing facility, as such, is exempt from the provisions of the California Environmental Quality Act (Public Resources Code, section 2100 et seq.) in accordance with California Code of Regulations (CCR), title 14, Chapter 3, section 15301.

The Regional Board has notified the Discharger and interested agencies and persons of the intent to issue WDRs for this discharge, and has provided them with an opportunity to submit written comments. The Regional Board, in a public meeting, heard and considered all comments pertaining to the discharge and to the tentative requirements.

Any person aggrieved by this action of the Regional Board may petition the State Water Board to review the action in accordance with Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The petition must be received by the State Water Board at P.O. Box 100, Sacramento, California, 95812, by 5:00 p.m., within 30 days of the date of this Order, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Board by 5:00 p.m. on the next business day. Copies of the law and regulations applicable to filing petitions may be found on the Internet at:

http://www.waterboards.ca.gov/public_notices/petitions/water_quality
or will be provided upon request.

IT IS HEREBY ORDERED that, pursuant to the CWC section 13301, the Discharger, Saticoy Sanitary District, as the owner of the Jose Flores WWTP that discharges effluent to evaporation/percolation ponds shall cease and desist discharging waste in violation of CDO No. R4-2013-0098, by complying with the following:

1. The Discharger shall immediately comply with the effluent and receiving water limits prescribed in WDR Order No. R4-2013-0092 except TDS and sulfate.
2. The Discharger shall immediately comply with the following interim effluent limits for TDS and sulfate based on current conditions:

INTERIM EFFLUENT LIMITATIONS

Constituent	Units ¹	Daily Maximum	Monthly Average
Total Dissolved Solids	mg/L	2,735*	2,474*
Sulfate	mg/L	1,577*	1,470*

¹mg/L: milligrams per liter

*Interim effluent limits are derived statistically at the 99/95 percentile of monitoring data collected from April 2011 through March 2013.

3. By **July 8, 2013**, the Discharger shall complete an internal program audit of its SSMP in accordance with Part D.13.x of the SSS WDR.
4. By **March 6, 2014**, the Discharger shall complete replacement of the seven reaches of main sewer lines identified in the *Summary Technical Report – Assessment of Conditions Impacting Effluent Discharge Quality*, dated January 2013, submitted by SSD.
5. By **September 8, 2014**, the Discharger shall submit a work plan, including additional measures required for compliance with effluent limits for TDS and sulfate at the Jose Flores WWTP, if the effluent discharges continue to exceed effluent limits prescribed in the WDR Order No. R4-2013-0092.
6. By **September 8, 2014**, the Discharger shall complete inspection of lateral sewer lines and submit a lateral sewer work plan identifying the lateral segments to be considered for replacement/repair.
7. By **June 8, 2015**, the Discharger shall complete replacement/repair of all lateral sewer lines within the areas as specified in the lateral sewer work plan.
8. By **June 8, 2015**, the Discharger shall achieve full compliance with all requirements contained in WDR Order No. R4-2013-0092. In addition, the Discharger must submit a report to demonstrate that the effluent from the Jose Flores WWTP does not contribute to the deterioration of the groundwater, if the groundwater quality continues to exceed Basin Plan Objectives due to existing high upgradient background concentrations.

9. The Discharger shall submit quarterly progress reports on the status of implementation of collection system replacement according to the following schedule with the first report due on **July 15, 2013**:

<u>Reporting Period</u>	<u>Report Due</u>
January - March	April 15
April - June	July 15
July - September	October 15
October - December	January 15

10. If, in the opinion of the Regional Board or its delegate, the Dischargers fail to comply with the provisions of this Order, the Regional Board may pursue further enforcement action. The Executive Officer or Assistant Executive Officer or other delegate may issue a complaint for administrative civil liability, or take any other applicable enforcement action. Failure to comply with this Order may result in the assessment of an administrative civil liability up to \$1,000 per violation per day, pursuant to CWC section 13268; and/or \$5,000 per violation per day, pursuant to CWC section 13350. Any discharge to waters of the United States may result in an administrative civil liability up to \$10,000 per discharge violation per day pursuant to CWC section 13385. The Regional Board may refer this matter to the Attorney General for judicial enforcement. The Regional Board reserves its right to take any enforcement actions authorized by law.

ELECTRONIC SUBMITTAL OF INFORMATION

Dischargers are directed to submit all reports required under this CDO adopted by the Regional Board, including groundwater monitoring data in Electronic Data Format, discharge location data, and searchable Portable Document Format of reports and correspondence, to the State Water Resources Control Board GeoTracker database under Global ID WDR100000104.

I, Samuel Unger, Executive Officer, do hereby certify that the foregoing is a full, true and correct copy of an order adopted by the California Regional Water Quality Control Board, Los Angeles Region, on June 6, 2013.


Samuel Unger, P.E. *Chief Deputy EO*
Executive Officer *fu*